

Short title.

2. This Act may be cited as the Education (Scotland) Act, 1928, and the Education (Scotland) Acts, 1872 to 1925, and this Act may be cited together as the Education (Scotland) Acts, 1872 to 1928.

CHAPTER 29.

An Act to provide for the humane slaughter of animals in Scotland. [3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Provisions
as to
slaughter of
animals, &c.

1.—(1) No animal, except swine, shall be slaughtered in a slaughter-house or knacker's yard except in accordance with the provisions of this section.

(2) Every such animal shall be instantaneously slaughtered, or shall by stunning["] be instantaneously rendered insensible to pain until death supervenes, and such slaughtering or stunning shall be effected by a person who is at the time the holder of a licence issued by the local authority under section two of this Act by means of a mechanically-operated instrument in proper repair and of a type approved by the local authority.

(3) If any person contravenes or fails to comply with or causes or permits any contravention or non-compliance with any of the provisions of this section, or attempts to slaughter an animal in a slaughter-house or knacker's yard otherwise than in accordance with the said provisions, he shall be liable on conviction by a court of summary jurisdiction to a fine not exceeding ten pounds or on a second conviction to a fine not exceeding twenty pounds or on a subsequent conviction to imprisonment for a period not exceeding sixty days or to a fine not exceeding twenty pounds, or to both such imprisonment and fine.

Licences.

2.—(1) A licence to slaughter or stun animals in accordance with the provisions of this Act shall not be granted except to a male person of the age of eighteen years or upwards who is, in the opinion of the local

authority, a fit and proper person to hold such a licence.

(2) A licence under this section shall be valid only in the district of the local authority granting the same, and for a period not exceeding twelve months, and may be renewed from time to time at the discretion of the local authority.

(3) The local authority may suspend a licence at any time for such period as they may determine and, where they are satisfied that the person is no longer a fit and proper person to hold a licence, may revoke the licence.

(4) Any person aggrieved by the refusal of the local authority to grant a licence or by the suspension or revocation by the local authority of a licence may appeal to the sheriff against such refusal, suspension, or revocation, within one month of the intimation thereof, and the decision of the sheriff shall be final.

(5) A fee, not exceeding five shillings, may be charged by the local authority for each such licence and a fee not exceeding one shilling for every renewal thereof.

(6) The provisions of this section shall apply to any licence granted by the local authority for the purpose of the provisions of this Act with regard to the Jewish and Mohammedan methods of slaughter.

3. Any local authority which has provided or established a slaughter-house may, if they think fit, employ persons to slaughter or stun animals, in accordance with the provisions of this Act, and may make such charges as they consider reasonable for the services of the persons so employed.

Employment of slaughtermen by local authority.

4. Any constable and any person authorised in writing by a local authority may enter any slaughter-house or knacker's yard in the district of the local authority at any time when business is, or appears to be in progress, or is usually carried on therein for the purpose of ascertaining whether there is or has been any contravention of or non-compliance with the provisions of this Act, and if any person shall refuse to permit any such constable or person to enter any premises which he is entitled to enter under this Act, or shall obstruct or impede him in the exercise of his duties under this Act, he shall be liable on conviction by a court of summary jurisdiction to a fine not exceeding five pounds.

Obstruction of officers, &c.

Provision as
to local
Acts.

5.—(1) Section one of this Act shall not apply to the slaughter of any animal in a slaughter-house in the city and royal burgh of Glasgow so long as the provisions of section seventy-two of the Glasgow Corporation Order, 1927, as amended by the immediately succeeding subsection of this section apply to such slaughter.

(2) Section seventy-two of the Glasgow Corporation Order, 1927, shall be amended as follows:—

- (a) For the authorisation in writing referred to in subsection (2) there shall be substituted a licence granted by the corporation;
- (b) In lieu of subsection (4) the provisions of section eight of this Act shall apply with the substitution of a reference to the provisions of the said section seventy-two for any reference to any provisions of this Act, and of a licence granted by the corporation for a licence granted by the local authority; and
- (c) The provisions of section two of this Act shall apply to any licence granted by the corporation in like manner as they apply to a licence granted by the local authority.

(3) Save as provided in the foregoing subsections, the provisions of any local Act, so far as inconsistent with this Act, shall cease to have effect.

Revocation
of incon-
sistent pro-
visions.

6. Any byelaws made by a local authority under any Act, so far as inconsistent with any provision of this Act, shall be invalid, but without prejudice to the validity of anything done thereunder before the commencement of this Act.

Definitions.

7. For the purposes of this Act—

- (a) “Slaughter-house” “knackers’ yard,” and “local authority,” have the respective meanings assigned to them in the Public Health (Scotland) Act, 1897;
- (b) The expression “animal” means any horse, mare, gelding, pony, foal, colt, filly, stallion, ass, donkey, mule, bull, cow, bullock, heifer, calf, steer, ox, sheep, ewe, wether, ram, lamb, pig, boar, hog, sow, goat and kid;
- (c) Any expenses incurred by a local authority in the exercise of their powers under this Act

shall be defrayed in like manner as the expenses of the local authority are defrayed under the Public Health (Scotland) Act, 1897 : Provided that in the case of a local authority owning a slaughter-house such expenses may, if such local authority so determine, be defrayed out of the funds from which such slaughter-house is maintained ;

- (d) " Constable " includes any constable within the meaning of the Police (Scotland) Act, 1890, and any justice of the peace constable. 53 & 54 Vict.
c. 67.

8. The provisions of section one of this Act shall not apply where an animal is slaughtered for the food of Jews by a Jew duly licensed for the purpose by the Chief Rabbi and holding a licence granted by the local authority or for the food of Mohammedans by a Mohammedan holding a licence granted by the local authority if such slaughtering is carried out according to the Jewish or the Mohammedan method of slaughter, as the case may be, and no unnecessary suffering is inflicted. Saving for
Jewish
method of
slaughter.

9.—(1) Byelaws under section two hundred and eighty-one of the Burgh Police (Scotland) Act, 1892, may provide for the prevention of cruelty to animals in knackers' yards, and the local authority of a district, other than a burgh, may make byelaws for the prevention of cruelty to animals in slaughter-houses and knackers' yards, and the provisions of sections one hundred and eighty-three to one hundred and eighty-seven, inclusive, of the Public Health (Scotland) Act, 1897, shall, with the substitution of a Secretary of State for the Scottish Board of Health, apply to byelaws made by the local authority of a district other than a burgh. Byelaws.
55 & 56 Vict.
c. 55.

(2) The local authority of a burgh to which the Burgh Police (Scotland) Act, 1892, does not apply may make byelaws for the prevention of cruelty to animals in slaughter-houses and knackers' yards, and the provisions of sections three hundred and seventeen to three hundred and twenty-four, inclusive, of the said Act shall apply to such byelaws.

10. Section one of this Act shall not apply to the slaughter under the Diseases of Animals Acts, 1894 to 1927, of an animal if such slaughter is carried out by an officer of or person employed by the Minister of Provision as
to Diseases
of Animals
Acts.

Agriculture and Fisheries by means of a mechanically operated instrument in proper repair and of a type approved by the Minister, and section four of this Act shall not apply in respect of any slaughter-house or knacker's yard which for the time being is or is in an infected place within the meaning of the said Acts.

Short title
and com-
mencement.

11.—(1) This Act shall apply to Scotland, and may be cited as the Slaughter of Animals (Scotland) Act, 1928.

(2) This Act shall come into operation on the first day of January, nineteen hundred and twenty-nine: Provided that section one, in so far as it relates to the slaughter of any sheep, ewe, wether, ram or lamb, shall not come into operation until the first day of October, nineteen hundred and twenty-nine.

CHAPTER 30.

An Act to make further provision for the re-organisation of educational and other endowments in Scotland. [3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Appoint-
ment of
Commis-
sioners.

1.—(1) For the purposes of this Act it shall be lawful for His Majesty to appoint nine Commissioners, and to appoint a secretary to the Commissioners, and as vacancies occur to supply such vacancies. The Commissioners and the secretary shall hold office during His Majesty's pleasure. His Majesty may from time to time appoint one of the Commissioners to be chairman.

(2) The secretary and such assistant commissioners and other officers, as the Commissioners may with the consent of the Treasury as to number appoint, shall be paid such remuneration as the Treasury may determine, and such remuneration, together with all expenses incurred by the Commissioners in the execution of this Act with the approval of the Treasury, shall be paid out of moneys provided by Parliament.